



By Email: info@ethichawks.co.za

Mr WW Matthee
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Dear Mr Matthee

3 June 2026

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Your reference:

Our reference: AFR1282

**Re: Your correspondence of 2 June 2026 to Parliament
Case No. 2026-086906 (Western Cape High Court) and Case No. 2026-083299 (Labour Court)**

1 Introduction

- 1.1 We refer to your email of 2 June 2026 addressed to Mr Makenjee, of the AfroCentric Employee Relations Department, and these offices, together with the attachments thereto.
- 1.2 The purpose of our correspondence is to correct a number of misstatements and to place the true facts on record.

2 The allegation regarding the answering affidavit

- 2.1 As you will be aware, our client was forced to approach the Western Cape High Court on an extremely urgent basis after you threatened to publicly disclose a large volume of information that is confidential, proprietary and subject to the requirements of the *Protection of Personal Information Act, 2013*. You also sought to engage in the extortion of our client, requiring that it pay to you in excess of R7 million in order to avoid the unlawful disclosure of its information, and that of its clients as well as its clients' members.
- 2.2 The application papers were served on you by email at 08:53 on 16 April 2026. The hearing was scheduled for 10:00 before the Honourable Acting Justice Mphego in Court 5.
- 2.3 You allege that our firm "*failed to present*" your answering affidavit to the presiding judge when the matter was called and that this constituted "*a material non-disclosure, an active misrepresentation to the judiciary, and a gross violation of a legal practitioner's absolute duty of utmost good faith to the court.*"
- 2.4 This allegation is denied in the strongest terms. It is factually incorrect and we record the true position:
 - (1) At 09:09, you emailed our offices confirming that you formally opposed the application and that you were "*currently securing the necessary travel fees to reach the Western Cape High Court.*" You demanded that your email be "*placed before the presiding Judge at 10:00 AM.*" Your email was brought to the attention of counsel and placed before the presiding judge.
 - (2) At 10:07, our associate, Ms Frances Barker, emailed you to confirm that urgent applications were being heard in Court 5 and provided directions to the courtroom.

- (3) At 10:57, you emailed our offices again, attaching your notice of intention to oppose and confirming that your answering affidavit was “*being drafted*.” You stated: “*I will be there. I am currently in transit*.”
- (4) At 12:31, you sent a further email attaching your signed and commissioned answering affidavit, sworn that morning before a Commissioner of Oaths in Delft. You requested that the applicant’s legal team “*immediately place this signed document before the presiding Judge*.”
- (5) Your answering affidavit was placed before the presiding judge. The Honourable Acting Justice Mphego adjourned the proceedings specifically to read your answering affidavit before making any order. The judge considered your papers in full and, having done so, granted the interim order in the form of a rule nisi.
- (6) The allegation that your answering affidavit was “*concealed*” from the presiding judge, or that our firm “*failed to present*” it, is accordingly false. Your papers were received, transmitted to counsel, placed before the judge, read by the judge, and considered before the order was granted. At no point were your papers withheld.
- (7) The order granted was a rule nisi, being an interim order, not a final order. It expressly provided for a timetable for the orderly exchange of further papers and for a return date at which you would have a full opportunity to oppose. You have exercised that right. You have filed three sets of answering papers, a counter-application and a practice note.
- (8) On the return date (28 May 2026), the full court file – including your answering affidavit of 16 April 2026, your supplementary answering affidavit of 20 April 2026, your further answering affidavit of 25 May 2026, and your practice note – was before the presiding judge.

2.5 In the circumstances, there is no basis whatsoever for any complaint to the Legal Practice Council or any other body regarding the conduct of our firm or counsel.

2.6 We place you on notice that any such complaint, if made on the basis of the false allegations set out in your correspondence, will be vigorously defended. We reserve our client’s rights in this regard.

3 The parliamentary petition

3.1 We note that you have addressed correspondence to the Office of the Speaker of the National Assembly and the Secretary to the NCOP. You are entitled to petition Parliament in accordance with the constitutional and procedural framework.

3.2 We record, however, that in terms of Parliament’s own published guidelines,¹ a petition may not be accepted where it concerns a matter pending in a court of law. Both the High Court proceedings and the Labour Court proceedings are pending.

3.3 Your characterisation of the interim interdict as a “*gag order*” designed to suppress whistleblowing is denied. The interdict restrains specific categories of threatened unlawful conduct. It does not prevent you from pursuing your Labour Court claims or from co-operating with regulatory bodies. We deny that your threatened disclosures fall within the protection of the *Protected Disclosures Act, 2000*.

3.4 Your assertion that the extension of the interim order until March 2027 was obtained to block your UIF benefits is denied. The extension of the interim order was necessitated by the fact that the matter could not be heard on the return date on 28 May 2026 because the Third Division was not in a position to accommodate an opposed matter of this nature. The UIF matter is before the Labour Court and is entirely unrelated to the interdict.

4 The pre-trial conference

4.1 The proposed date of 22 June 2026 for the pre-trial conference in the Labour Court proceedings was put forward by our client in good faith and in accordance with ordinary practice. Should you have any

¹ <https://www.parliament.gov.za/petitions>

procedural disagreement regarding the scheduling of the pre-trial conference, the Labour Court is the appropriate forum in which to raise it.

4.2 In this regard, kindly refer to the current *Rules of the Labour Court* of 2024, particularly Rule 22.

5 Conclusion

5.1 We do not intend to debate the merits of the pending proceedings by correspondence. The proper forum for your arguments is the Court. We remind you that the interim interdict granted on 16 April 2026 remains in force and binding upon you until 1 March 2027 or until further order of the Court. Any breach of the terms of the Order will constitute contempt of court.

5.2 We record that any further allegations of "*perjury*," "*material non-disclosure*," or professional misconduct against our firm or counsel – if made on the basis of the factually incorrect assertions set out in your correspondence – may themselves give rise to proceedings for defamation or malicious prosecution.

5.3 Our client's rights remain fully reserved.

Yours faithfully

A handwritten signature in black ink, appearing to be 'J. Whyte', with a long horizontal line extending to the right.

Jason Whyte, Director
Frances Barker, Associate
Deneys Reitz Inc